

NC.2 Permit Application Checklist

Everything a North Carolina owner-builder gathers, verifies, and files — with the four state-level gates that stop an application cold.

Before you use this document

This is a process reference, not legal advice. North Carolina permits are administered by 100 counties and dozens of municipalities, and local requirements vary. Confirm every item with the inspections department that will issue your permit before you rely on it.

THE FOUR GATES SET BY STATE LAW

Most of what your county asks for is local. These four are not — they are conditions the General Statutes place on the issuing of your permit, and no county can waive them. Clear these before you worry about anything else.

- **1. Owner exemption affidavit** — verified (sworn): you own the property, will personally superintend the work, and will be present at every inspection. Forwarded to the Licensing Board. (§ 87-14(a)(1))
- **2. Workers' compensation** — proof of coverage "as required by Chapter 97," which reaches employers with three or more regular employees; jurisdictions use an affirmation form for everyone else. (§ 87-14(a)(2); § 97-2(1))
- **3. Lien agent** — at \$40,000 or more, designated before you first contract with anyone to improve the property, with the agent's details printed on the permit itself. (§ 44A-11.1(a); § 87-14(a1); § 160D-1110(g))
- **4. Erosion control** — if the job disturbs more than one acre, a plan filed at least 30 days ahead and **approved before the building permit may issue**. (§ 113A-57(4); § 160D-1110(e))

The lien agent trap

Owner-builders routinely assume the "owner-occupied residence" exemption covers them. It does not. G.S. 44A-11.1(a) exempts improvements to an **existing** single-family dwelling the owner already occupies. A house you are building does not exist yet and you do not occupy it — so at \$40,000 or more, designate the lien agent. See NC.5.

A. SITE AND PROJECT VERIFICATION

A1: Before anything else

	Item	Date	Notes / who confirmed
☐	Confirmed which jurisdiction issues your permit — city/town or county (see NC.4)		
☐	Parcel identification number and 911 address confirmed PIN: _____ Address: _____		
☐	Deed recorded in your name — you must own the land to claim the exemption		
☐	Zoning district and permitted use verified with planning/zoning		
☐	Required setbacks confirmed in writing Front: _____ Side: _____ Rear: _____ Other: _____		
☐	Easements, rights-of-way, and recorded restrictions identified		
☐	Flood zone status checked; floodplain requirements identified if in a Special Flood Hazard Area		
☐	HOA or covenant approval obtained if applicable — private, not governmental; the county will not check it for you		

B. THE APPLICATION PACKAGE

B1: Forms and proofs

	Item	Date	Notes
☐	Building permit application, completed and signed		
☐	Owner exemption affidavit — notarized ("verified") as § 87-14 requires		
☐	Workers' compensation form as your jurisdiction words it		

B1: Forms and proofs

	Item	Date	Notes
☐	Lien agent designated and details supplied to the inspections department Agent: _____ Date: _____		
☐	Estimated construction cost stated — this sets the \$40,000 tests and usually the fee Stated cost: \$ _____		
☐	Separate trade permit applications identified: electrical, plumbing, mechanical (some counties combine them; ask)		

B2: Plans and supporting drawings

	Item	Date	Notes
☐	Two complete plan sets (confirm how many and what format — most NC jurisdictions now take digital submission)		
☐	Site plan showing property lines, setbacks, the building footprint, driveway, well and septic locations, and any easements		
☐	Foundation plan, floor plans, elevations, wall sections, and a framing plan		
☐	Electrical, plumbing and mechanical layouts as your county requires		
☐	Energy code compliance documentation (see section E) Path used: _____		
☐	Engineered or manufacturer specifications for anything non-standard — trusses, ICF, SIPs, long spans, steep-slope foundations		

They cannot require a seal just because

"A local government shall not require residential building plans for one- and two-family dwellings to be sealed by a licensed engineer or licensed architect unless required by the North Carolina State Building Code." (G.S. 160D-1110(b)) If you are told your plans need a seal, ask which Code provision requires it. Note the separate trade-off: architect-sealed plans are the only way out of attending every inspection (§ 160D-1113).

C. SEPTIC AND WELL — COUNTY HEALTH, NOT THE BUILDING OFFICE

On-site wastewater and private drinking water wells are permitted by your **local health department** under state rules, on a different track and a different timeline from your building permit. Septic runs as three sequential approvals under 15A NCAC 18E, and the first one depends on your soil — which is why it should be the very first thing you start, before you buy land if you still can.

The three approvals, in order: the **Improvement Permit (IP)** follows the soil and site evaluation and establishes that the site can support a system and what kind; the **Construction Authorization (CA)** allows the system to actually be built; and the **Operation Permit (OP)** is issued after installation and a pre-cover inspection, and is what lets the system be used. The IP and CA are separate instruments, but § 18E .0204(c) lets a county issue them together when the IP carries no conditions.

Your building permit is gated on the CA — statewide

This one is not a county-by-county question. 15A NCAC 18E § .0204(f): "A building permit shall not be issued for a design unit until CAs for all components of the wastewater system serving that design unit have been issued." Note it is the **Construction Authorization** that unlocks the building permit, not the Improvement Permit — people get that backwards and lose weeks. Start the soil evaluation before anything else on this list.

C1: Septic and well

	Item	Date	Notes
☐	Soil / site evaluation applied for with the county health department (or a Licensed Soil Scientist hired to do it and submit it for you)		
☐	Improvement Permit issued IP #: _____ Date: _____		
☐	Construction Authorization issued — the building permit cannot issue before this CA #: _____ Date: _____		

C1: Septic and well

	Item	Date	Notes
☐	System type and drainfield location shown on your site plan and consistent with the house footprint		
☐	Operation Permit obtained after installation and the pre-cover inspection — the system may not be used before it issues		
☐	Well construction permit obtained from the county health department before drilling, if you will have a well — valid five years Permit #: _____ Date: _____		
☐	Grout inspection scheduled by the well contractor with the health department before grouting		
☐	Certificate of Completion issued — the well may not be placed in service without it Date: _____		

The health department samples your well, not you. Within 30 days of issuing the Certificate of Completion it *"shall collect water samples and submit them to a certified laboratory"* — or ensure a certified lab does (15A NCAC 18A § .3802(a)). Your job is simply not to let it be forgotten. Bacteria testing covers total coliform, then fecal coliform or E. coli if any is present, and is drawn only after the disinfectant has been flushed. The chemical panel is fixed by rule § .3803(c): **arsenic, barium, cadmium, chromium, copper, fluoride, lead, iron, magnesium, manganese, mercury, nitrate, nitrite, selenium, silver, sodium, zinc and pH.** Keep the results — a lender or a buyer will ask for them one day.

*Septic permit names, sequence and the building-permit gate: 15A NCAC 18E § .0204(c), (f) and § .0205, administered by local health departments. Well permitting, validity and the Certificate of Completion: 15A NCAC 02C § .0304, § .0305, § .0306(c). Sampling duty and the chemical panel: 15A NCAC 18A § .3802(a), § .3803. The rules above are statewide; **application forms and fees are local** — confirm those with your county. This kit prints no IP or CA validity period, because that period is set by statute the kit has not verified. Verified August 2026.*

D. DRIVEWAY AND EROSION CONTROL

You probably do not need an NCDOT driveway permit — call anyway. 19A NCAC 02B § .0601(a) requires a Street and Driveway Access Permit to connect within a state right of way, then says *"driveway connections to residences are normally excluded from this requirement"* unless there is a public safety hazard, a highway construction project, or excessive or obvious drainage complications. NCDOT's policy manual agrees: *"PERMITS will normally not be required for a single residence."* Contact the District Engineer anyway — the policy asks you to, so they can flag design issues and **arrange your driveway pipe.** No application fee; the form carries a \$50 construction inspection fee. A stricter local ordinance governs (§ .0601(c)).

D1: Driveway access and erosion control

	Item	Date	Notes
☐	Determined whether the road you connect to is state-maintained (NCDOT) or city/county-maintained — this decides who you talk to		
☐	If state-maintained: NCDOT District Engineer contacted, and whether a permit is required for your connection confirmed in writing District: _____ Contacted: _____		
☐	Driveway pipe size and sight-distance requirements settled before anything is installed		
☐	If city or county maintained: their driveway requirements confirmed — and any stricter local ordinance identified		
☐	Total land disturbance calculated — house, driveway, septic area, staging and spoil piles Total acres disturbed: _____		
☐	If more than one acre : erosion and sedimentation control plan filed at least 30 days before any land disturbance begins		
☐	Confirmed who reviews it — NC DEQ's land resources program or a delegated local program		
☐	Plan approved — the building permit cannot legally issue for land-disturbing activity until it is		
☐	If one acre or less: confirmed whether a local ordinance sets a lower threshold than the State's one acre		
☐	Exposed slopes must be stabilized within 21 calendar days of completing a grading phase		

Some local programs go lower than the State's acre — but most do not. Durham and Charlotte both sit at the state threshold. Winston-Salem regulates single-family construction well below it, at 20,000 square feet, per a 2013 NC DEMLR compilation of local program ordinances; confirm the current figure with the city, since that compilation is a decade old. The point is not that locals are stricter — it is that you cannot assume either way, so ask which agency has jurisdiction over your parcel and what its threshold is.

Driveways: 19A NCAC 02B § .0601, and § .0602(a) — the application goes to the District Engineer, four copies, on form TEB 65-04. NCDOT Policy on Street and Driveway Access. NCDOT runs 14 highway divisions; find yours by county at ncdot.gov → Divisions → Highways. One-acre threshold, 30-day filing and the 21-day ground cover rule: N.C.G.S. § 113A-57(2), (3), (4); no building permit for land-disturbing activity without an approved plan: §

160D-1110(e); local programs must at least meet and may exceed the State's rules: § 113A-60. Note the statute says **more than** one acre — exactly one acre does not trigger it. Verified August 2026.

E. CODE EDITIONS AND ENERGY COMPLIANCE

The **2018** North Carolina Residential, Energy Conservation, Plumbing, Mechanical and Fuel Gas Codes are the editions in effect. The 2024 State Building Code has been adopted but its effective date remains deferred with no date set; it may be used as an alternative method on request under Administrative Code § 102.5.

The electrical code for your house is the 2017 NEC — not the 2020

Nearly every summary online says "North Carolina uses the 2020 NEC." That is true for commercial work and wrong for yours. The Office of State Fire Marshal lists the current code as the "2020 State Electrical Code (2020 NEC with State Amendments; **excluding one- and two-family dwellings**, see Amendments 10.1 & 10.2)." Those amendments send houses back to the **2017 State Electrical Code**.

The NC Board of Examiners of Electrical Contractors says the same thing: the 2020 code "*is not applicable to one- and two-family dwellings*," and the 2017 edition "*will remain effective for one- and two-family dwellings including their accessory structures*." Detached garages, pools and PV are covered too. Buy the right book, and say "2017" at the counter.

Confirm it with your department anyway. The OSFM interpretation creating this carve-out reasons from a statutory date that has since passed, and OSFM has not published an update. The exclusion is still on their live page — but get your inspector's answer before you buy wire.

ncosfm.gov → Codes → State Electrical Division, and the OSFM Engineering Division interpretation of Amendments 10.1 and 10.2 dated November 1, 2021; ncbeec.org, "2020 NEC Status Update." The 2023 State Electrical Code is on indefinite delay (S.L. 2025-2, § 5.12). Verified August 2026.

The 2018 NC Energy Conservation Code is **based on the 2015 IECC**, not the 2018 IECC — a detail that matters when you buy a reference or hire an energy rater. **Compliance has four paths** (§ R401.2): prescriptive (R401-R404); simulated performance (R405); an energy rating index / HERS approach (R406); or a North Carolina REScheck keyed to the 2018 IECC, where envelope requirements may not be traded off against high-efficiency equipment. Pick one before you draw — they drive different documentation. If you go the ERI route, ask your department for the current maximum score; this kit does not print one, because the figure sits in a base-code table rather than the State's published amendments.

A blower-door test is optional; a duct test is not. North Carolina did not adopt mandatory envelope testing — § R402.4.2 gives two coequal options: a **Visual Inspection Option** certified by the builder or permit holder, or a **Testing Option** at **5.0 ACH50** (or 0.30 CFM50 per square foot of surface area), the same figure in every NC climate zone. But **duct leakage testing is mandatory** (§ R403.3.3): 5 CFM25 per 100 sq ft total, or 4 to the outside, excepting ducts wholly inside the thermal envelope and systems serving 750 sq ft or less. One trap — an unvented conditioned attic on the reduced-R alternative requires a blower-door result under **3.0 ACH50** (§ R402.2.2.2), and the visual option is gone.

North Carolina has three climate zones, and geography will mislead you. Zone 5A is six mountain counties: Alleghany, Ashe, Avery, Mitchell, Watauga and Yancey. Much of the west and northern Piedmont is 4A — including **Wake, Durham and Buncombe**. The coastal plain and southern Piedmont are 3A — including **Mecklenburg**. Charlotte sits in a warmer zone than Raleigh. Look your county up in Table R301.1 rather than guessing.

E1: Energy code

	Item	Date	Notes
☐	Compliance path chosen and confirmed acceptable to your department Path: _____		
☐	Climate zone for your county looked up in Table R301.1 Climate zone: _____		
☐	Insulation R-values for walls, ceiling and floors shown on the plans		
☐	Window and door U-factor and SHGC values documented		
☐	Air sealing approach documented — and decided whether you are using the Visual Inspection Option or a blower-door test		
☐	Duct leakage test arranged — this one is mandatory Tester: _____ Result: _____		

Code editions: NC Office of State Fire Marshal, "Codes — Current and Past." Compliance paths and envelope values: 2018 NC Energy Conservation Code § R401.2, § R402.4.2, § R403.3.3, § R402.2.2.2 and Table R301.1, per the OSFM approved-amendments compilation. Verified August 2026 — confirm your department's practice before you submit.

WHAT THE STATE GUARANTEES YOU

- **A review clock.** If your local government reviews residential plans, "*all initial reviews for the building permit shall be performed within 15 business days of submission*" — and if the initial review is not done within 20 business days, the jurisdiction must refund 10% of your total permit application fee for each business day late, up to 10 days. (§ 160D-1110(b))
- **One permit for simultaneous work** applied for at the same time, at the same address, under the Residential Code. (§ 160D-1110(d)(2))
- **Two clocks once it issues.** The permit expires six months after issuance if work has not commenced — or sooner by local ordinance — and expires immediately if work is discontinued for 12 months after commencement. Guides claiming an "18-month" NC permit are describing local practice, not the statute. (§ 160D-1111)

Application filed: _____ Permit issued: _____ Permit #: _____

Sources — every North Carolina claim in this document (verified August 2026)

What this document states	Authority
Owner exemption affidavit and workers' comp proof at \$40,000+	G.S. 87-14(a)(1), (a)(2)
Chapter 97 reaches employers with three or more employees	G.S. 97-2(1)
Lien agent required at \$40,000+; exemption is for improvements to an existing owner-occupied dwelling	G.S. 44A-11.1(a); 87-14(a1)
Lien agent details must appear on the permit	G.S. 160D-1110(g)
Erosion plan required over one acre, filed 30 days ahead; slopes stabilized within 21 days	G.S. 113A-57(2), (4)
No building permit for land-disturbing activity without an approved plan	G.S. 160D-1110(e)
Plan review within 15 business days; fee refund past 20; no seal required on 1-2 family plans unless the Code requires it	G.S. 160D-1110(b)
One permit for simultaneous same-address residential projects	G.S. 160D-1110(d)(2)
Permit expiry: six months to commence, 12 months of inactivity	G.S. 160D-1111
Septic: Improvement Permit, Construction Authorization, Operation Permit, via the local health department	15A NCAC 18E
No building permit until the Construction Authorization has issued	15A NCAC 18E .0204(f)
Well permit before drilling; Certificate of Completion before service	15A NCAC 02C .0304, .0306(c)
The local health department samples a new well within 30 days; the chemical panel is fixed by rule	15A NCAC 18A .3802(a), .3803
Driveway permits normally not required for a single residence	19A NCAC 02B .0601(a)
2018 Residential / Energy / Plumbing / Mechanical Codes in effect	ncosfm.gov — Codes, Current and Past
One- and two-family dwellings are excluded from the 2020 State Electrical Code and governed by the 2017 edition	ncosfm.gov State Electrical; ncbeec.org
NCECC 2018 is based on the 2015 IECC; four compliance paths; 5.0 ACH50 if tested; duct test mandatory	2018 NCECC R401.2, R402.4.2, R403.3.3

Read any General Statute cited above at **ncleg.gov** → Enacted Legislation → Statutes → by Section, or directly at ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_87/GS_87-1.html with the chapter and section swapped in. All statute text verified August 2026.